

**In the Supreme Court of Bangladesh
High Court Division
(Criminal Appellate Jurisdiction)**

Present:

Mr. Justice Md. Shohrowardi

Criminal Appeal No. 883 of 2001 with

Criminal Appeal No. 882 of 2001 with

Criminal Appeal No. 1150 of 2001

Md. Shafiur Rahman

.....Appellant in Cril. A. No. 883 of 2001

Sree Sukumar Pendey

.....Appellant in Cril. A. No. 882 of 2001

Md. Shahrab Sheikh and another

..Appellant in Cril. A. No. 1150 of 2001

-versus-

The state and another

Mr. Md. Uzzal Hossain, Advocate

....For the appellant in Cril. A. No. 883 of 2001

No one appears

....For the appellant in Cril. A. No. 882 of 2001

Mr. Shahed Ali Zinna, Advocate

.....For the appellant in Cril. A. No. 1150 of 2001

Mr. Shaheen Ahmed, Advocate

.....for the respondent No. 2 (ACC)

Mr. Md. Monirul Islam, DAG with

M/s. Anjuman Ara Begum, AAG with

M/s. Kazi Shamsun Nahar, AAG with

Mr. Md. Shamim Khan, AAG

... For the respondents

**Heard on 18.01.2023, 19.01.2023, 22.01.2023,
23.01.2023 and 12.03.2023.**

Judgment on 14.03.2023

The above-mentioned criminal appeals have arisen out of the same judgment and order passed by the trial Court. Therefore, all the criminal appeals were heard analogously and disposed of by this single judgment.

The appellants preferred the above-mentioned appeals challenging the legality and propriety of the impugned judgment and order dated 26.02.2001 passed by the Divisional Special Judge, Rajshahi in Special Case No. 19 of 1995 (Raj) convicting the accused-persons under sections 409/109 of the Penal Code read with section 5(2) of the Prevention of Corruption Act, 1947 (Act No. II of 1947) and sentencing the accused Md. Shafiur Rahman Shafi and accused Sree Sukumar Pandey under Sections 409/109 of the Penal Code, 1860 to suffer rigorous imprisonment for 03 (three) years and a fine of Tk. 91000 each, in default, to suffer rigorous imprisonment for 03 months more and sentencing the accused Md. Shohrab Sheikh and accused Md. Kajem Ali under sections 409/109 of the Penal Code, 1860 to suffer rigorous imprisonment for 01(one) year and a fine of Tk. 91,000, in default, to suffer rigorous imprisonment for 03 months.

The prosecution case, in brief, are that a seven-member project committee was formed for the reconstruction of a road from the house of Akbar Sarkar of Narayanpur village to Chandipur village under W.F.P. Project No.160902/89-90. The accused Sree Sukumar Pandey being the Member of the Union Parishad became the Chairman of the Project Committee. He lifted 20 metric tons of wheat on 10.5.1990 and work was done for only 4.725 metric tons of wheat. The accused Sree Sukumar Pandey, Shafiur Rahman Safi, Shohrab Sheikh, Kazem Ali and Shahidullah

Akand in collusion with each other misappropriated (20.00-4.725)=15.275 metric tons of wheat.

The Bureau of Anti-Corruption inquired and after the inquiry, P.W. 1, Assistant Inspector Manjur Ahmed of the Bureau of District Anti-Corruption lodged FIR with Bagha Thana on 06.11.1992. Thereafter, the case was investigated by P.Ws. 14, 15, 16 and 17. Finally, after completing the investigation, P.W. 17 Md. Abu Bakar Siddique submitted charge sheet against 05(five) accused persons under sections 409/109/420/467/471 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 (Act No. II of 1947). Thereafter, the case record was sent to the Divisional Special Judge, Rajshahi for trial.

During the trial, the charge was framed under sections 409/109 of the Penal Code read with section 5(2) of the Prevention of Corruption Act, 1947 (Act No. II of 1947) against the accused persons and the charge was read over and explained in Bengali to the accused persons present in Court who pleaded not guilty to the charge and claimed to be tried in accordance with law. The prosecution examined 17 witnesses to prove the charge against the accused persons. After examination of the prosecution witnesses, the accused persons were examined under section 342 of the Code of Criminal Procedure, 1898 and again they pleaded not guilty to the charge. Initially, the accused Md. Shafiur Rahman Shafi and Md. Shohrab Sheikh claimed to examine DWs but finally, they refrained from examining any DWs. After hearing both the parties, the trial Court by impugned judgment and order convicted the accused-persons and sentenced them as stated above.

P.W. 1 Monjur Ahamd is the Assistant Inspector, Bureau of Anti-Corruption Rajshahi. He stated that on 23.12.1990 while he was posted at Rajshahi, he received an application on 14.12.1990 signed by 9 members of the Union Parishad and the District Anti-Corruption Officer, Ali Akbar

Molla vide ER No. 11/1991 directed him to enquire into the allegation made in the said application. He proved the said application as exhibit-1 and his signature as exhibit-1/1. He seized several documents from the office of the PIO of Bagha Upazila and prepared the seizure list. He proved the worksheets, closure report total 84 pages, level book, measurement book and 02 bundles roll of the first instalment. He proved the seizure list as exhibit-2 and his signature on the seizure list as exhibit-2/1. There are note sheets, closure reports, post-work measurement sheets and pre-work measurement sheets, total 66 pages. He also seized the documents relating to the measurement of the project and resolution dated 09.05.1990. He proved the seizure list as exhibit-3 and his signature on the seizure list as exhibit-3/3. He proved the seizure list dated 21.10.1993 as exhibit-4 and his signature as exhibit-4/1. During inquiry, he found that by resolution dated 27.09.1990 accused Sree Sukumar Pandey was appointed as the Chairman of the second project committee who withdrew 20 metric tons of wheat on 10.05.1990, out of which, he completed the reconstruction work for 4.725 metric tons of wheat and misappropriated total 15.275 metric tons of wheat. He proved the FIR as exhibit-5 and his signature as exhibit-5/1. During cross-examination, he stated that accused Shafiur Rahman Shafi is not named in the FIR lodged for misappropriation of 15 metric tons of wheat withdrawn by accused Sree Sukumar Pandey. By resolution dated 27.09.1990 accused Shafiur Rahman Shafi handed over the charge to the accused Sree Sukumar Pandey and the accused Sree Sukumar Pandey was appointed the Chairman of the second project committee. The 7 members committee constituted by the resolution dated 27.09.1990 completed the work of the third installment. The First Committee was dissolved on 27.09.1990 and the second project committee was also constituted on the same day. In the resolution dated 27.03.1990, it has been mentioned that in the absence of accused Shafiur Rahman Shafi, the wheat cannot be distributed. He denied the suggestion that due to the illness of accused Sree

Sukumar Pandey the key of the godown was handed over to accused Shafiur Rahaman Shafi.

P.W. 2 Abdur Rashid is a businessman. He stated that the Chairman Shafiur Rahman Shafi was the Chairman of the project committee constituted for the reconstruction of the road from the house of Akbar Sarkar of Narayanpur village of Raju Bagha Union to Chandipur village. During cross-examination on behalf of Sree Sukumar Pandey, he stated that at the time of completion of the work, Sree Sukumar Pandey was sick and at that time, he heard that Chairman Shafiur Rahman Shafi had taken responsibility for the work by resolution dated 27.06.1990. The responsibility was given to the Chairman but he is not aware whether the work was done successfully. He affirmed that he did not say anything regarding the illness of Sree Sukumar Pandey to the investigating officer. He is not aware whether Sree Sukumar Pandey has taken charge of the project committee from the Shafiur Rahman Shafi.

P.W. 3 Md. Ramizul Islam stated that between 10.05.1990 to 23.02.1990, he was the Chairman of the Rajubagha Union Parishad and thereafter, he was tendered by the prosecution and the defence declined to cross-examine him.

P.W. 4 Md. Motiur Rahman is the Project Implementation Officer (PIO). He stated that he was the PIO of Bagha Thana from 1987 to 1990. A committee was constituted for the re-construction work of a road from the house of Akbar Sakarer bari, Narayanpur to Chandipur village and accused Shafiur Rahman Shafi was the Chairman of the project committee approved by the UNO. He proved the approved committee as exhibit-2/1 and his signature and the signature of UNO as exhibits-2/1 and 2/2. Subsequently, the second committee was constituted headed by accused Sree Sukumar Pandey and the said Committee withdrew 20 metric tons of wheat. He measured the work for first and second instalments and after completing the

work of the first and second instalments, he submitted the measurement book. He proved the measurement book as exhibit-2/Ka and his signature as exhibit-2/ka1. He also measured the work for third instalment and found that work of 95550 square feet was completed. He proved his signature in the level book as exhibit-2/ga and 2ga(1). He admitted that he got the master roll of the first and second instalments but he did not get the master roll of the third instalment. After taking measurements, he submitted the closure report. He proved the report as exhibit-2/2gha and 2gha(1). The Sub-Assistant Engineer and the UNO also signed the closure report. He proved the signatures as exhibit-2/kha/2 and 2kha/3. The accused did not complete the work of 15.275 metric tons of wheat and misappropriated the same. During cross-examination, he admitted that accused Shafiur Rahman Shafi had completed the work of the first and second instalments and the accused Sree Sukumar Pandey had withdrawn the wheat of the third instalment and total 15.275 metric tons of wheat was misappropriated. During cross-examination on behalf of Sukumar Pandey, Shoharab Sheikh and Kazem Ali, he stated that he is also an accused of Rajshahi Special Case No. 7 of 1997(Rajshahi) pending in the same court and at the time of deposition, he was under suspension. The date of occurrence of Case No. 7 of 1997 took place between 1989 to 1990. He stated that total 100.846 metric tons of wheat was allotted for the project and total 1005479 cubic feet of earth filling was completed. After the withdrawal of the said wheat, accused Sree Sukumar Pandia became sick. He could not say whether after that the Shafiur Rahman Shafi has taken responsibility for the third instalment. During cross-examination, he denied the suggestion that the accused Shafiur Rahman Shafi submitted the master roll of the third project.

P.W. 5 Syed Shahidul Hasan is a Constable of the Bureau of District Anti-Corruption. He stated that while he was discharging his duty at the Rajshahi DAB Office on 10.01.1992, the Inspector of Rajshahi DAB seized the documents from the accused Shohrab Sheikh. He proved his signature in

the seizure list as exhibit-3/2 and the defense declined to cross-examine him.

P.W. 6 Md. Duku Mia stated that the accused Shafiur Rahman Shafi is the Chairman of Bagha Union Parishad. He did not work on the reconstruction project of the road from Narayanpur Akbor Sarkarer Bari to Chandipur village and also did not sign any documents. The defence declined to cross-examine him.

P.W. 7 Akkas Ali is a labour. He stated that he did not file any application to withdraw wheat. He denied the suggestion that accused Sree Sukumar Pandey had given a proposal to purchase wheat. The accused Sree Sukumar Pandey and Shoharab Sheikh had given him wheat valued at Tk. 11,500.

P.W. 8 Md. Abul Kalam Azad stated that on 06.06.1991 he was discharging his duty as PIO of Bagha Thana. The Inspector of the Bureau of District Anti-Corruption seized documents from him as per the seizure list. He proved his signature on the seizure list as exhibit-2/2. He stated that the post-work measurement, closure report, measurement book, master roll and related documents of the second instalment were seized from his office.

P.W. 9 Md. Towhidul Islam stated that Chairman Shafiur Rahaman Shafi was the Chairman of the Project Committee and subsequently, accused Sree Sukumar Pandey became the Chairman of the said committee. Since the work of the first committee was not done satisfactorily, the authority constituted the second committee. The work of the project was not done correctly for which he filed an application and at that time he was a member of the Union and he signed the application. He proved the signature of A. Razzak as exhibit-1/2. During cross-examination, he stated that he was a member of Union Parishad from 1988 to 1990 and at that time accused Shafiur Rahman Shafi was the Chairman. Since the work of the first committee was not done correctly, the first committee was dissolved

and Sree Sukumar Pandey was the Chairman of the second committee who withdrew 20 metric tons of wheat. Ten members were present in the meeting dated 27.03.1990 and in that meeting, it was decided that in the absence of the Chairman, the wheat cannot be distributed. The Chairman withdrew the carrying costs from the concerned office. After the withdrawal of wheat accused Sree Sukumar Pandey became sick on 12.05.1990 and Shafiur Rahman Shafi called him to go to the house of accused Sree Sukumar Pandey and he refused to distribute the wheat and on the coercion, the Chairman took his signature on a document and handed over the key of the godown. He wrote the hand note dated 15.05.1990 wherein it has been mentioned that the accused Shafiur Rahman Shafi has taken responsibility for 20 metric tons of wheat. He proved the signature of the Chairman Shafiur Rahman on the photocopy of resolution dated 15.05.1990 as exhibit-Ka(1) and the resolution dated 27.03.1990 as exhibit-Kha. He also stated that the accused Shafiur Rahman Shafi was convicted in another case. During cross-examination, he stated that he was a member of Union Parishad along with Sree Sukumar Pandey and 9 other members took a no-confidence resolution against accused Shafiqur Rahman Shafi.

P.W. 10 Md. Rafiqul Islam is the SAE of the Education Facilities Department, Kurigaram. He stated that on 04.06.1990, he was posted at Bagha Thana in the same post. He proved his signature in the closure report of the reconstruction work of Bajur Bagha Union as exhibit-2/ka/2. In the report, it has been mentioned that 15.275 metric tons of wheat was misappropriated. In the resolution dated 06.11.1990 decision was taken to take action against the accused Sree Sukumar Pandey.

P.W. 11 Md. Masudur Rahman is a Constable of the Anti-corruption Commission, Dhaka. He stated that on 21.10.1990 he was posted in the District Anti-corruption Office, Rajshahi and on that day Inspector Monjur seized documents from Moshir Rahman and prepared the seizure list. He proved his signature on the seizure list as exhibit-4/2. During cross-

examination, he stated that he had no personal knowledge about the documents seized by Inspector Monjur Rahman.

P.W. 12 Ahad Uddin was tendered by the prosecution and the defence declined to cross-examine.

P.W. 13 Mojibur Rahman is the Assistant Superintendent of Police, Perojpur. He stated that on 20.06.1993 he was posted at CID as a handwriting expert. On 06.02.1993 he received memo No. 101 dated 01.02.1993 from the Bureau of District Anti-corruption, Rajshahi for examination and after examination of the said documents submitted a report. In the report, he opined that the disputed signature 'ka' is identical to the handwriting cha series which has been written by accused Towhidul. The alleged signature of accused Md. Shafiur Rahman Shafi ka-1 is not similar to kha/kha-1 and gha series (admitted signature of Md. Shafiur Rahman Shafi). But he did not give any opinion as regards the disputed signature of accused Md. Shafiru Rahman Shafi Ka-1. He proved the report as exhibit-6 and his signature as exhibit-6/1. During cross-examination, he stated that based on scientific experience, he examined the signature, although, he had no academic degree or diploma in this regard.

P.W. 14 Monjur Ahmed stated that on 06.11.1992 he was posted as Assistant Inspector of the Bureau of District Anti-corruption, Rajshahi and as per the instruction of his authority, he took up investigation of the case. On 9.11.1992 and 17.09.1993 he went to the Char Ghat government godown and seized documents of two items and prepared the seizure list. He proved the seizure list as exhibit-7 and his signature on the seizure list as exhibit-7/1. He also sent the handwriting of the member of the Union Parishad Md. Towhidul Islam for expert opinion. He also recorded the statement of witnesses and during the investigation, he found the prima facie truth of the allegation made in the FIR and submitted the memo of evidence. During cross-examination, he stated that accused Towhidul Islam

was cited as accused in the memo of evidence. He affirmed that some wheat was also found in the godown of Sree Sukumar Pandey situated at Narayonpur. He denied the suggestion that intentionally he did not include the name of the Md. Shafiur Rahman in the memo of evidence as accused. In the FIR, it has been mentioned that accused Sree Sukumar Pandey completed the work of 4.275 metric tons of wheat and the other wheat was misappropriated. During cross-examination on behalf of the Soharab Sheikh, he admitted that on 03.06.1990 accused filed an application to the UNO stating that he completed work of 20950 square feet. Since he did not get all the wheat, he could not complete the work and based on the said application the case was initiated.

P.W. 15 Md. Golam Nabi stated that on 03.10.1993 he was the Assistant Inspector of DAB, Rajshahi and on the same date, he was appointed as the investigating officer. During the investigation, he recorded the statements of the witnesses, seized the documents and submitted memo of evidence.

P.W.16 Md. Riaz Uddin stated that on 06.11.1993 he was discharging his duty as Assistant Inspector of DAB, Rajshahi. On that day, he was appointed as investigating officer, seized the documents and submitted the memo of evidence and thereafter, he was transferred.

P.W. 17 Abu Bakkar Siddique stated that while he was discharging his duty at DAB, Rajshahi he was appointed as investigating officer and after perusal of the records he submitted charge sheet after getting approval from the authority. During cross-examination, on behalf of the accused Sukumar Panday, he could not say how many committees were formed for the completion of the project and who was the Chairman and members of the committee. He is not aware whether all members of the committee were implicated as accused in the charge sheet or cited as witnesses in the charge sheet. In the charge sheet, it has been mentioned that after the withdrawal of

wheat accused Sree Sukumar Pandey became sick. During cross-examination on behalf of the accused Shafiur Rahman, he stated that on 10.05.1990 accused Sukumar Pandey withdrew 20 metric tons of wheat and he completed the work of 4.725 metric tons of wheat and misappropriated 15.275 metric tons of wheat without submitting master roll which has been mentioned in the FIR. During cross-examination on behalf of accused Sohorab Sheikh, he stated that he is not aware as to whether the accused Shohrab Sheikh filed any application to the TNO as regards shortage of wheat withdrawn for reconstruction of the project.

The learned Advocate Mr. Md. Uzzal Hossain appearing on behalf of the accused Md. Shafiur Rahman Shafi submits that the occurrence took place between 09.05.1990 to 04.06.1990 and after preliminary inquiry, the FIR was lodged on 06.11.1992 against only accused Sree Sukumar Pandey and the accused Md. Shafiur Rahman Shafi is not named in the FIR lodged after the inquiry and 2 years and 6 months from the alleged occurrence. He further submits that the accused Md. Shafiur Rahman Shafi is the Chairman of the Rajubagha Union Parishad and also the Chairman of the first project committee constituted for the reconstruction of a road from the house of Akbor Sarkar of Narayonpur village to Chandipur under WFP Project No. 16090259-90 and the first committee withdrawn total 40 metric tons of wheat and after completing the works of 40 metric tons of wheat, the project committee submitted the master roll and closure report to the concerned authority which was duly accepted by the Project Implementation Officer (P.W. 4) and the UNO. No allegation has been made against the accused Md. Shafiur Rahman Shafi as regards the completion of the work of 40 metric tons of wheat withdrawn by the first committee and he is neither a member of the second committee nor he had withdrawn wheat of the third instalment. The investigating officers P.Ws. 14, 15 and 16 also did not recommend him as accused in the memo of evidence and the fourth investigating officer P.W. 17 without assigning any

reason included the name of Md. Shafiur Rahman Shafi in the charge sheet as accused. He also submits that P.W. 9 along with 9 other members of the Union Parishad passed a 'no confidence resolution' against the accused Md. Shafiur Rahman Shafi (exhibit-6) and he forged the signatures(exhibit-Ka(1)) of the accused Md. Shafuir Rahman Shafi. P.W. 13 Md. Mujibur Rahman did not give a positive opinion as regards the signature (on exhibit-Ka(1)) of the accused Md. Shafiur Rahman Shafi. He finally submits that initially P.W. 9 Towhidur Rahman was implicated as accused in the memo of evidence by P.W. 14 but finally, P.W. 17 excluded him from the list of accused and malafide cited him as a witness in the charge sheet. The prosecution failed to prove the charge against the accused persons beyond all reasonable doubt.

The learned Advocate Mr. Shahed Ali Zinna appearing on behalf of the accused Md. Sohrab Sheikh and accused Md. Kazem Ali submits that they are not named in the FIR although the FIR was lodged after primary inquiry and 2(two) years after the alleged occurrence and no evidence was adduced by the prosecution to prove the charge against the accused persons. He further submits that a seven-member committee was formed headed by accused Sree Sukumar Pandey and 3 other members of the said committee were not implicated in the case and the accused persons stand on the same footing but the investigating officer without any material submitted charge sheet against them. He also submits that 20 metric tons of wheat were withdrawn by the accused Sree Sukumar Pandey and there is no iota of evidence against the accused persons. Therefore, he prayed for the acquittal of the accused persons.

No one appears on behalf of the accused Sree Sukumar Pandey.

The learned Advocate Mr. Shaheen Ahmed appearing on behalf of respondent No. 2 in all appeals submits that accused Md. Shafiur Rahman Shafi is the Chairman of the Rajubagha Union Parishad and he is also the

supervisor of the second committee constituted by resolution dated 27.03.1990. As a supervisor, he has taken all the responsibility for the project and also paid the carrying costs of 20 metric tons of wheat withdrawn by accused Sree Sukumar Pandey. He further submits that the accused Sree Sukumar Pandey is the Chairman of the project committee and the accused Md. Kazem Ali is a member of the said Committee. Therefore, as a member of the committee, they are responsible for not completing the work of 20 metric tons of wheat withdrawn on behalf of the said committee by accused Sree Sukumar Pandey. He also submits that after the withdrawal of the wheat, Sree Sukumar Pandey became sick and accused Md. Safiur Rahman Shafi and P.W. 9 Md. Towhidul Islam went to the house of Sree Sukumar Pandey and by letter dated 15.05.1990 accused Md. Safiur Rahman Shafi has taken all the responsibility of the project to complete the work of 20 metric tons of wheat withdrawn by accused Sree Sukumar Pandey. He lastly submits that no master roll was submitted for 20 metric tons of wheat and all the members of the committee and the Chairman of the Union Parishad who is the Supervisor of the committee are responsible for the completion of the project and the prosecution proved the charge against the accused persons beyond all reasonable doubt.

I have considered the submissions made on behalf of the accused persons and respondent No. 2, perused the evidence and the judgment and order passed by the trial court and the records.

On perusal of the records, it appears that initially a committee was constituted for the reconstruction of a road from the house of Akbar Sarkar of Narayanpur village to Chandipur under W.F.P. Project No.160 90 2/89-90. The accused Md. Shafiur Rahman Shafi was the Chairman of the Union Parishad and he was also the Chairman of the first committee of the project approved by the TNO and P.W. 4 Project Implementation Officer Md. Motiur Rahman. The accused Md. Shafiur Rahman Shafi is neither president nor member of the second committee. P.W. 4 Md. Motiur Rahman

stated that he took the measurement of the work done by the first committee and he also obtained the master roll of the first and second instalments (exhibit-2(Cha) series). During cross-examination, P.W. 4 admitted that accused Md. Shafiur Rahman Shafi is the Chairman of the first committee and he withdrew wheat of the first and second instalments and rightly completed the work after withdrawal of the wheat and submitted closure reports exhibit-2Ga, 2Ga(1), 2Ka(1) and 2Kha(2) which were accepted by the UNO. He also stated that accused Sree Sukumar Panday was the President of the second committee and he withdrew wheat of the third instalment. P.W. 14, 15 and 16 are the investigating officers and they did not include the name of Md. Shafiur Rahman Shafi in the memo of evidence as accused and he is also not named in the FIR. No reason has been assigned by P.W. 17, the fourth investigating officer, as to why he included the name of the accused Md. Shafiur Rahman Shafi in the charge sheet.

Admittedly accused Sree Sukumar Panday is the President of the second committee constituted for reconstruction of the said road by resolution dated 25.03.1990 and accused Shoharab Sheikh is the Secretary and accused Md. Kazem Ali is a member of the said committee. After the investigation, the investigating officer submitted charge sheet against 4 members of the second committee and no reason has been assigned as to why the investigating officer did not submit charge sheet against 03 other members of the second committee.

It has been alleged that after the withdrawal of 20 metric tons of wheat by the accused Sree Sukumar Pandey became sick and out of 20 metric tons of wheat, work was completed for 4.725 metric tons of wheat and total 15.725 metric tons of wheat were misappropriated. P.W. 9 Towhidul Islam stated that he along with Md. Shafiur Rahman Shafi went to the house of the accused Sree Sukumar Pandey when he became sick. P.W. 9 Towhidul Islam is a member of the Union Parishad and accused Md.

Shafiur Rahman Shafi is the Chairman of the Union Parishad and by letter dated 12.03.1990 (exhibit-Kha) written by P.W. 9 allegedly Md. Shafiur Rahman Shafi accepted all the responsibility of the project and signed the letter dated 12.03.1990 written by P.W. 9 (exhibit-Ka(1)).

No reason has been assigned by the prosecution why the original resolution dated 27.03.1990 was not proved. P.W. 9 proved the photocopy of resolution dated 27.03.1990 as exhibit-Kha. Letter dated 15.05.1990 was not proved by the prosecution. P.W. 13 Mojibur Rahman, Handwriting Expert, opined that the alleged signature of accused Md. Shafiur Rahman i.e. Ka/1 is not identical to the admitted signatures of the accused Md. Shafiur Rahman Shafi i.e. exhibit-Kha, Kha(1) and ga series. P.W. 9 stated that he along with other members of the said Union Parishad took no confidence resolution against the accused Md. Shafiur Rahman Shafi. The prosecution case is that P.W. 9 Towhidul Islam and accused Md. Shafiur Rahman Shafi have taken responsibility of the project. P.W. 14 stated that he implicated the P.W. 9 Towhidul Islam as accused in the memo of evidence. Be that as it may, P.W. 9 also stand on the same footing along with accused Md. Shafiur Rahaman Shafi. No reason has been assigned by the fourth investigating officer P.W. 17 as to why he did not implicate P.W. 9 as accused in the charge sheet whose name was included in the memo of evidence as accused by P.W. 14. Because of the above facts and circumstances of the case, I am of the view that P.W. 9 Towhid Islam is an inimical witness and his evidence can not be relied on by this court as trustworthy and reliable.

Although the trial Court found that the signature of the accused Md. Shafirur Rahman Shafi i.e. Ka/1 is identical to his admitted signatures i.e. Kha/Kha1 and ga series but P.W. 13 Mojibur Rahman in his report (exhibit-6) opined that the signature of the accused Md. Shafiur Raham Shafi Ka/1 is not identical to his admitted signatures i.e. Kha/ Kha/1 and ga series. The

report submitted by P.W. 13 (exhibit-6) was not disputed by the prosecution. Since there is a contradiction concerning the opinion given by the P.W. 13 and the trial court, I have carefully examined the admitted signatures of the accused Md. Shafiur Rahman i.e. Kha, Kha/1, ga series and the disputed signature i.e. Ka/1. It appears that the P. W. 13 correctly opined as regards the signature of accused Md. Shafiur Rahman Shafi that disputed signature of accused Shafiur Rahman Shafi i.e. Ka/1 is not identical to the admitted signature of accused Md. Shafiur Rahman Shafi i.e. Kha, Kha/1 and ga series. Therefore, the opinion of the trial court that the disputed signature of accused Md. Shafiur Rahman Shafi ka/1 is identical to his admitted signatures i.e. Kha/Kha/1 and ga series is not correct. I am of the view that the Ka/1 is not the signature of the accused Md. Shafiur Rahman Shafi.

Admittedly 20 metric tons of wheat were withdrawn by accused Sree Sukumar Panday and no evidence was adduced by the prosecution to prove that accused Shohrab Sheikh and Md. Kazem Ali signed any resolution or document after the withdrawal of the wheat by accused Sree Sukumar Pandey. Furthermore, P.W. 14 Monjur Ahmed during cross-examination admitted that accused Shohrab Sheikh applied on 03.6.1990 to the TNO as regards the shortage of wheat withdrawn by the accused Sree Sukumar Panday and due to shortage of wheat, he could not complete the project and based on the said application the case was initiated. Surprisingly, the charge sheet was submitted against Shohrab Sheikh who is not named in the FIR and filed an application to the concerned authority as regards the shortage of wheat withdrawn by accused Sree Sukumar Panday and 03 other members of the second committee who stand on the same footing along with accused Shohrab Sheikh and accused Md. Kazem Ali were not sent up in the charge sheet.

After preliminary inquiry, the FIR was lodged after 2 years from the date of occurrence. In the FIR it has been alleged that accused Sree

Sukumar Panday withdrew 20 metric tons of wheat and misappropriated 15.275 metric tons of wheat and completed the work of only 4.725 metric tons of wheat. P.Ws. 1, 4, 5, 8, 10, 11, 14 to 17 proved that only Sukumar Panday withdrew 20 metric tons of wheat and without submitting the master roll misappropriated 15.275 metric tons of wheat. Therefore, I am of the view that the prosecution failed to prove the charge against the accused Md. Shafiur Rahman Shafi, accused Shohrab Sheikh and accused Md. Kazem Ali. The prosecution only proved the charge against accused Sree Sukumar Panday. The impugned judgment and order of conviction and sentence passed by the trial Court against accused Md. Shafiur Rahman Shafi, accused Md. Shoharab Sheikh and accused Md. Kazem Ali are hereby set aside and they are acquitted from the charge levelled against them.

It is found that accused Sree Sukumar Panday misappropriated 15.275 metric tons of wheat valued at Tk.91000. Therefore, I am of the view that the sentence awarded by the trial court is not proportionate to the gravity of the offence. Therefore, the sentence passed by the trial is required to be modified as under;

The accused Sree Sukumar Panday is found guilty of the offence under sections 409 of the Penal Code, 1860 read with 5(2) of the Prevention of Corruption Act, 1947 (Act No. II of 1947) and he is sentenced under section 409 of the Penal Code, 1860 to suffer rigorous imprisonment for 01 (one) year and to pay a fine of Tk.91000, in default, to suffer rigorous imprisonment for 03 (three) months more.

In the result, Criminal Appeal No. 883 of 2001 and Criminal Appeal No. 1150 of 2001 are allowed.

Criminal Appeal No. 882 of 2001 is disposed of with modification of sentence.

Send down the lower Court's record at once.

